

Multiple Choice (10 marks)

1. A man is charged with murder. During the trial, defense counsel offers the testimony of a man on death row admitting he hired another man to shoot the victim. The testimony is
 - (a) not hearsay.
 - (b) hearsay, but admissible as an admission.
 - (c) hearsay, but admissible as a dying declaration.
 - (d) hearsay not within any recognized exception.
2. In most states, the division of homicide into degrees is distinguished according to which of the following?
 - (a) the causal relationship between the defendant's act and the resulting death.
 - (b) the attendant circumstances surrounding the death.
 - (c) the nature of the act causing the death.
 - (d) the defendant's state of mind at the time the killing was committed.
3. A defendant charged with first-degree murder shall be furnished with a list containing names and addresses of all prospective jurors
 - (a) upon court order.
 - (b) upon request.
 - (c) upon request and showing of good cause.
 - (d) under no circumstances.
4. Under Article III, federal judicial power extends to which of the following kinds of cases?
 - (a) interpretation of treaties
 - (b) interpretation of admiralty laws
 - (c) disputes between states and foreign citizens
 - (d) all of the above
5. A criminal actor committed the crime of solicitation. Which of the following does not apply to solicitation?
 - (a) It is an agreement between two or more to commit a crime.
 - (b) It is solicitation of another to commit a felony.
 - (c) No act is needed other than the solicitation.
 - (d) Withdrawal is generally not a defense.

True / False (10 marks)

Answer True or False

6. True or False: A voting law can be upheld if it is merely rationally related to an important government purpose.
7. True or False: The equal protection clause of the Fourteenth Amendment applies to corporations by prohibiting discrimination based on classifications.
8. True or False: A life tenant is not responsible for damages caused by a third-party tortfeasor on the property.
9. True or False: Hearsay is not considered a correct form of real evidence in legal proceedings.
10. True or False: The Uniform Commercial Code (UCC) primarily governs contracts related to real estate transactions, including commercial property sales.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the impeachment process for U.S. federal officials, analyzing the constitutional requirements, procedures, and the implications of a Senate conviction versus acquittal.
12. Discuss the implications of a defendant being compelled to stand trial in street clothing. Analyze whether this situation constitutes a violation of due process and why.

End of Paper